

**CHAPTER cvi.**

An Act to confirm a Provisional Order under the Private Legislation Procedure (Scotland) Act 1899 relating to Dundee Corporation. A.D. 1915.
[10th November 1915.]

WHEREAS His Majesty's Secretary for Scotland has made the Provisional Order set forth in the schedule hereunto annexed under the provisions of the Private Legislation Procedure (Scotland) Act 1899 and it is requisite that the said Order should be confirmed by Parliament: 62 & 63 Vict.
c. 47.

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The Provisional Order contained in the schedule hereunto annexed shall be and the same is hereby confirmed. Confirmation
of Order in
schedule.

2. This Act may be cited as the Dundee Corporation Order Confirmation Act 1915. Short title.

A.D. 1915.

S C H E D U L E.

DUNDEE CORPORATION.

Provisional Order for the erection and maintenance of a Municipal Hall for the City and Royal Burgh of Dundee and the abandonment of certain authorised works and the construction of a substituted street work and for other purposes.

WHEREAS the lord provost magistrates and councillors of the city and royal burgh of Dundee (hereinafter called "the Corporation" and "the city" respectively) are vested with the municipal and police administration thereof:

And whereas by the Dundee Corporation (Improvements and Tramways) Act 1913 (hereinafter called "the Act of 1913") the Corporation were authorised to make and maintain inter alia the works numbered (10) (11) and (12) as described in section 6 (Description of street works) of that Act and marked by the said numbers respectively on the plans deposited with reference to that Act and to enter upon take and use the lands houses and property required for or in connection with the said works and for providing space for the erection of houses and buildings along the sides of streets or adjoining or near to the said works and for squares or open spaces and for the improvement of the district in which such lands houses and property are situate or for such other purposes as the Corporation might think fit:

And whereas since the passing of the Act of 1913 Sir James Key Caird Baronet has agreed to defray the cost to the amount of one hundred thousand pounds of the erection of a new municipal hall and council chambers and offices for the city on part of the site of the works numbers (10) (11) and (12) hereinbefore mentioned authorised by the Act of 1913 and it is expedient that the Corporation should be empowered to abandon and relinquish the construction of those works and in lieu thereof and on the lands authorised to be acquired therefor by the Act of 1913 to provide erect and maintain and manage a municipal hall council chambers offices market shops warehouses and buildings and also to make and maintain the new street work

hereinafter in this Order described and to acquire such additional lands as may be necessary for the purposes thereof: A.D. 1915.

And whereas the estimated cost of the works by this Order authorised to be abandoned and relinquished including the cost of the lands authorised to be acquired therefor by the Act of 1913 amounted to the sum of one hundred and seventy thousand pounds:

And whereas of the sum of two hundred and ten thousand pounds authorised by the Act of 1913 to be borrowed the sum of eighty-seven thousand five hundred pounds part thereof was applicable to the works by this Order authorised to be abandoned and relinquished:

And whereas in respect of the additional property required for the purposes of this Order and the increased cost it is expedient that the amount authorised to be borrowed or raised in respect of the purchase of lands and properties and the construction of the street works by the Act of 1913 authorised should be reduced to the extent only of the sum of sixty thousand pounds:

And whereas it is expedient that the Corporation should be authorised to borrow and raise additional money necessary for the purposes of this Order and to levy rates and assessments in respect thereof:

And whereas estimates have been prepared by the Corporation for and in relation to the purposes hereinafter mentioned in respect of which they are by this Order authorised to borrow money and such estimates are as follows:—

For the purchase of lands and properties and	£
the construction of the street work by this	
Order authorised	- - - - 173,000
For and in connection with the erection of the	
municipal hall council chambers offices and	
buildings connected therewith and the public	
market and conveniences connected therewith	.
and the shops offices warehouses and other	
buildings all by this Order authorised	- 97,000

And whereas the several works included in such estimates are permanent works and it is expedient that the cost thereof should be spread over a period of years:

A.D. 1915.

And whereas it is expedient that the further powers and provisions hereinafter in this Order contained should be conferred and made as by this Order provided :

And whereas a plan and section showing the lines situations and levels of the street work authorised by this Order and also a book of reference to such plan containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of the lands houses and other property required or which may be taken for the purposes or under the powers of this Order were duly deposited with the principal sheriff clerk of the county of Forfar at his offices in Dundee and Forfar respectively and are hereinafter respectively referred to as the deposited plan section and book of reference :

62 & 63 Vict.
c. 47.

And whereas the purposes aforesaid cannot be effected without an Order of the Secretary for Scotland confirmed by Parliament under the provisions of the Private Legislation Procedure (Scotland) Act 1899 :

Now therefore in pursuance of the powers contained in the last-mentioned Act the Secretary for Scotland orders as follows :—

Short title
and citation
of Acts.

1. This Order may be cited for all purposes as the Dundee Corporation Order 1915.

The Dundee Corporation Acts 1871 to 1914 and this Order may be cited together as the Dundee Corporation Acts 1871 to 1915.

Division of
Order into
Parts.

2. This Order is divided into Parts as follows :—

Part I. —Preliminary.

Part II.—Municipal Hall and Relative Buildings.

Part III.—Abandonment of Authorised Works and
Construction of Substituted Work.

Part IV.—Lands.

Part V.—Borrowing of Money and Rates and
Assessments.

Part VI.—Miscellaneous.

PART I.

PRELIMINARY.

Incorporation
of Acts.

3. The Lands Clauses Acts are so far as the same are applicable for the purposes of and are not varied by or inconsistent with this Order incorporated with and form part of this Order.

4. In this Order terms words and expressions to which meanings are assigned by the Dundee Police and Improvement Consolidation Act 1882 or by the Acts wholly or partially incorporated with this Order shall subject to the provisions of this Order have the same respective meanings unless there be something in the subject or context repugnant to such construction. Further the following expressions shall have the several meanings by this section assigned to them unless there be something in the subject or context repugnant to such construction (that is to say):—

“City” means the city and royal burgh of Dundee;

“Corporation” means the lord provost magistrates and councillors of the city;

“Sheriff” means the sheriff of the county of Forfar and includes his substitutes;

“Sheriff clerk” means the principal sheriff clerk of the county of Forfar;

“The Act of 1882” means the Dundee Police and Improvement Consolidation Act 1882;

“The Order of 1907” means the Dundee Corporation Order 1907;

“The Act of 1913” means the Dundee Corporation (Improvements and Tramways) Act 1913;

“The commencement of this Order” means the date of the passing of the Act confirming this Order.

PART II.

MUNICIPAL HALL AND RELATIVE BUILDINGS.

5.—(1) The Corporation may subject to the provisions of this Order on lands already acquired and to be acquired by them under the powers of the Act of 1913 and this Order or on any part or parts of the same provide build erect and maintain in such manner and according to such plan design elevation and height and general arrangement as they think fit a municipal hall and council chambers and offices for the city together with such shops warehouses offices and other buildings as part thereof and in connection therewith and a square in front of the said municipal hall and a public market underneath such square and such shops offices warehouses and other buildings

A.D. 1915. and conveniences in connection with the same as the Corporation may deem expedient or desirable and may provide suitable and convenient accesses thereto and complete furnish and equip the said municipal hall chambers offices shops warehouses market and other buildings and conveniences.

(2) The Corporation may use or allow the said hall and chambers to be used for any municipal purpose and for concerts or other entertainments or for any other purpose which the Corporation may consider proper and the Corporation may make such charge or charges for the use of the said hall or chambers or allow the same to be used at any time without charge as the Corporation think fit.

(3) The Corporation may let either by public roup or private bargain for any period any such shops warehouses offices or other buildings and any market stances upon such terms and conditions as they may think fit.

Power to
erect and let
buildings.

6.—(1) The Corporation may also as part of the scheme for the building of the municipal hall council chambers warehouses offices market and other buildings and as wings extending north from the main building of the said municipal hall erect and maintain shops offices warehouses market and other buildings upon the said lands already acquired and to be acquired by them under the powers of the Act of 1913 and this Order and on any lands already belonging to them delineated on the deposited plan and described in the deposited book of reference or some part or parts thereof and may enter into and carry into effect contracts and agreements with any company or person in relation to the erection and maintenance of such shops offices warehouses market and other buildings.

(2) The Corporation may either by public roup or private bargain let from year to year or for a less period or lease for a term at a rent not less than rackrent or sell feu exchange or otherwise dispose of such lands shops offices warehouses market and other buildings or any of them or any part thereof and may execute and do any deed act or thing necessary requisite or proper for effectuating any such letting lease sale feuing exchange or other disposition.

Application
of gift for
municipal
hall.

7. The Corporation shall in addition to the power to borrow money conferred by this Order use appropriate and apply towards the erection of the said intended municipal hall

council chambers shops warehouses offices and other buildings connected therewith the moneys to be received from the said Sir James Key Caird for the purpose. A.D. 1915.

8. The Corporation may make such rules regulations and byelaws as they may think fit for the proper regulation and management of the said municipal hall and council chambers provided that such rules regulations and byelaws be not repugnant to the law of Scotland All such rules regulations and byelaws shall be confirmed and published under and according to the provisions contained in the Act of 1882 in regard to the byelaws thereby authorised. Power to make regulations.

9. The Corporation may by such rules regulations and byelaws impose such reasonable penalties upon all persons offending against the same as the Corporation think fit not exceeding five pounds for any one offence Provided always that all complaints arising out of any breach of such rules regulations and byelaws shall proceed before the magistrates of the city under the Dundee Corporation Acts 1871 to 1914 and the Summary Jurisdiction (Scotland) Acts. Penalties for breach of byelaws.

10. Part XXVI. (Public Markets and Slaughter-houses) of the Act of 1882 and the clauses and provisions incorporated therewith shall except as otherwise by this Order provided extend and apply to the public market market houses and other buildings and conveniences connected therewith authorised by this Order. Application of sections of Act of 1882.

PART III.

ABANDONMENT OF AUTHORISED WORKS AND CONSTRUCTION OF SUBSTITUTED WORK.

11. The Corporation may and shall abandon and relinquish the construction of the street works numbers (10) (11) and (12) authorised by the Act of 1913 and described in section 6 (Description of street works) of that Act and marked by those respective numbers on the plans deposited with reference to that Act and the street work authorised by this Order shall be in substitution therefor. Abandonment of certain works previously authorised.

12. Subject to the provisions of this Order the Corporation may make and maintain in the lines and situations and upon the lands delineated on the deposited plan and described in the Power to make street work.

A.D. 1915. — deposited book of reference or some part or parts thereof and according to the levels shown on the deposited section the new road or street hereinafter described or some part or parts thereof with all proper works and conveniences connected therewith (all in this Order called "street work").

Description
of street
work.

13. The street work hereinbefore referred to and authorised by this Order will be wholly situate within the city and the parish of Dundee and is as follows (that is to say):—

A new road or street (marked "street work" on the deposited plan) commencing at a point in High Street twelve yards or thereby north-east from the north-east corner of the Town House and extending therefrom in a south-easterly direction to a point thirty-nine yards or thereby south-west from the west side of Castle Street thence in a south-westerly direction to a point in the east side of the street called Greenmarket thence north-westwards to and terminating at a point in High Street thirteen yards or thereby south-west from the south-west corner of the Town House.

Application
of sections of
Act of 1913.

14. The sections hereinafter specified of the Act of 1913 shall so far as applicable and not varied by or inconsistent with the provisions of this Order extend and apply mutatis mutandis to the street work by this Order authorised and to the Corporation with reference thereto as fully and effectually as if those sections had been re-enacted in this Order (that is to say):—

Section 7 (Ownership of streets);

Section 8 (Lateral and vertical deviations);

Section 9 (Power to cross roads &c. temporarily);

Section 10 (Corporation to form carriageways &c.);

Section 11 (Corporation empowered or may be required to underpin or otherwise strengthen houses near street works);

Section 12 (Power to make minor works connected with street works);

Section 13 (As to removal and relaying of water pipes);

Section 14 (As to removal and relaying of electric cables and gas pipes);

Section 15 (Power to alter steps doors &c.);

A.D. 1915.

Section 16 (Lands thrown into streets to be public highway).

15. The Corporation in addition to the streets thoroughfares wynds closes passages accesses lands rows courts entries and places specified in section 17 (Power to stop up certain streets) of the Act of 1913 may stop up and discontinue the user by the public of that portion of Tindal's Wynd lying between High Street and a point seven yards or thereby north from the north-west line of Castle Lane.

Power to
stop up por-
tion of Tin-
dal's Wynd.

16. The ground and soil of such portion of Tindal's Wynd to be stopped up as aforesaid shall be and is hereby vested in the Corporation for the purposes of this Order.

Soil of Tin-
dal's Wynd
stopped up.

17. The street work hereinbefore described and authorised by this Order shall be completed within ten years from the commencement of this Order and on the expiration of that period the powers by this Order granted to the Corporation for executing the same or otherwise in relation thereto shall cease except as to so much thereof as shall then be completed.

Period for
completion
of street
work.

PART IV.

LANDS.

18. For the purposes of the municipal hall council chambers and offices and the shops warehouses offices and other buildings connected therewith and the square in front of the said municipal hall and the public market underneath such square and the other shops warehouses offices and other buildings and street work authorised by this Order and for providing space for the erection of buildings along the sides of streets or adjoining or near to the street work and the improvement of the district the Corporation may subject to the provisions of this Order appropriate and use the lands houses and property authorised to be acquired by them under the provisions of the Act of 1913 for and in connection with the street works by this Order authorised to be abandoned and relinquished and may purchase take and acquire compulsorily or by agreement and may enter upon take use and appropriate all or any of the lands houses and property shown on the deposited plan and specified and described in the deposited book of reference including therein any lands houses and property

Lands for
municipal
hall and
street work.

A.D. 1915. vested in or held or being acquired by themselves whether as and forming part of the common good of the city or otherwise or any part or parts of such respective lands houses and property Provided that on any lands houses and property forming part of the common good of the city being used for the purposes of this Order the common good shall only be credited with the actual cost thereof to the Corporation as representing the common good All which lands houses and property hereinbefore in this section referred to are situate within the following limits (that is to say):—

The limits of the area marked Area A in the parish of Dundee and burgh of Dundee delineated and numbered on the deposited plan and described in the deposited book of reference and bounded by a line commencing at a point in High Street fourteen yards or thereby west from the west line of Crichton Street and four yards or thereby north from the south side of High Street and extending in a north-easterly direction along High Street to a point opposite the east line of Tindal's Wynd eight yards or thereby from the south side of High Street thence in south-easterly and southerly directions along the east side of Tindal's Wynd to a point twenty-nine yards or thereby distant from the south side of High Street thence in easterly northerly south-easterly south-westerly and south-easterly directions to a point on the north side of Castle Court twenty yards or thereby west from the west line of Castle Street thence across Castle Court thence in a south-easterly direction to a point on the north side of the lane known as Doig's Court twenty-one yards or thereby west from the west line of Castle Street thence across Doig's Court to a point on the south side thereof twenty-one yards or thereby west from the west line of Castle Street thence along the south side of Doig's Court to a point in Castle Street five yards or thereby east from the west line of Castle Street thence in a south-easterly direction to a point in Shore Terrace nine yards or thereby east from the south-west corner of Castle Street thence in a south-westerly direction for a distance of one hundred and twenty-three yards or thereby to a point six yards or thereby east from the east face of building at the junction of Dock Street and Whitehall Crescent thence in a westerly direction to a

point on the north side of Whitehall Crescent twenty-one yards or thereby distant from the point of intersection of the said north line of Whitehall Crescent and the west line of Crichton Street thence in northerly westerly and north-westerly directions till it reaches the west line of Ogilvie's Close thence in a north-westerly direction following the west line of Ogilvie's Close to the point of commencement.

A.D. 1915.
—

19. Any notices to treat relating to all or any of the lands houses and property shown on the deposited plan and described in the deposited book of reference served by the Corporation in respect of the same properties under the powers conferred by the Act of 1913 and the Lands Clauses Acts incorporated therewith and any arbitrations in respect of any such lands houses and property pending at the commencement of this Order shall be deemed to have been given and shall proceed as if they had been respectively given and commenced by and under the powers conferred by this Order and the Acts incorporated therewith.

As to notices
to treat and
arbitrations
under Act of
1913.

20. The powers of the Corporation for the compulsory purchase of lands houses and property under the powers of this Order shall cease after the expiration of six years from the commencement of this Order.

Limitation
of time for
compulsory
purchase of
lands.

21. In determining any question of disputed purchase money or compensation payable in respect of lands houses or property taken under the authority of this Order which were authorised to be acquired under the provisions of the Act of 1913 for and in connection with the street works by this Order authorised to be abandoned and relinquished the tribunal shall not award any sum of money for or in respect of any improvement alteration or building made or erected or in respect of any interest in the land whether by way of lease or otherwise created after the first day of January one thousand nine hundred and thirteen if in the opinion of the tribunal the improvement alteration or building or the creation of the interest in respect of which the claim is made was not reasonably necessary and was made erected or created with a view to obtaining or increasing compensation under the Act of 1913 or this Order.

Provisions as
to compensa-
tion.

22. The sections hereinafter specified of the Act of 1913 shall so far as applicable and not varied by or inconsistent with the provisions of this Order extend and apply mutatis mutandis to the lands houses and other property authorised to be taken

Application
of sections of
Act of 1913.

A.D. 1915. — and appropriated by this Order and the street work by this Order authorised and to the Corporation with reference thereto as fully and effectually as if those sections had been re-enacted in this Order (that is to say) :—

Section 31 (Correction of errors in deposited plans and book of reference);

Section 32 (Power to take down buildings and lay out lands of new);

Section 33 (Owners may be required to sell parts only of certain properties);

Section 34 (As to private rights of way over lands taken compulsorily);

Section 36 (Costs of arbitration &c. in certain cases);

Section 37 (Purchase of lands by agreement);

Section 38 (Power to take servitudes &c. by agreement);

Section 39 (Power to retain sell &c. lands);

Section 40 (Corporation may appropriate lands for purposes of Act);

Section 41 (Corporation not to be bound to execute all works &c.).

PART V.

BORROWING OF MONEY AND RATES AND ASSESSMENTS.

Reduction of borrowing power under Act of 1913.

23. Section 42 (Power to borrow or raise additional money) of the Act of 1913 shall be read as if the sum of one hundred and fifty thousand pounds had been therein inserted instead of the sum of two hundred and ten thousand pounds.

Power to borrow or raise additional money.

24.—(1) The Corporation may from time to time borrow or raise for the several purposes of this Order sums not exceeding the amounts hereinafter mentioned for the respective purposes following (that is to say) :—

(a) In respect of the purchase of lands and properties and the construction of the street work by this Order authorised the sum of one hundred and seventy-three thousand pounds:

(b) In respect of the municipal hall council chambers offices and buildings connected therewith and the public market and conveniences connected therewith and

the houses shops offices warehouses and other buildings
all by this Order authorised the sum of ninety-seven
thousand pounds :

A.D. 1915.

(c) In respect of the costs charges and expenses of and
incident to the preparing and applying for and the
issue of this Order and the confirmation thereof by
Parliament or otherwise in relation thereto such sum
as may be necessary.

(2) All moneys borrowed under this section shall be applied
only to the purposes for which they are authorised to be borrowed.

(3) If having borrowed any money under the powers of
this section the Corporation pay off the same or any part thereof
otherwise than by instalments or by means of a sinking fund
as in this Part of this Order prescribed or out of the proceeds
of the sale of lands or other moneys received by them on capital
account (not being borrowed moneys) they may re-borrow the
same and so on from time to time Provided that all moneys
so re-borrowed shall for the purposes of repayment be deemed
part of the original loan and shall be repaid within the period
prescribed for the repayment of the moneys in lieu of which
such re-borrowing has been made.

25. Notwithstanding anything in this Order contained the
Corporation shall not under the powers of this Order borrow
any money during the continuance of the present war and
twelve months thereafter unless the consent of the Treasury
has been previously obtained but such consent shall not be
required for the borrowing of any money for the purpose (c)
mentioned in the immediately preceding section of this Order.

Restriction
on borrow-
ing during
continuance
of present
war.

26. Part V. (Estimates and Assessments) and Part XXXVII.
(Borrowing and Raising of Money) of the Act of 1882 section 33
(Issue of redeemable police debenture stock) of the Dundee
Corporation Act 1894 and section 23 (Amendment as regards
Dundee police debenture stock) of the Dundee Gas Commis-
sioners Order 1910 shall except as otherwise by this Order
provided extend and apply to this Order in the same way and
to the same effect as if the purposes thereof were purposes of
the said Acts Provided that the street work and other works
by this Order authorised shall be deemed to be embraced under
the first second third and fourth heads of section 32 (Estimates
to be made up) of the Act of 1882 Provided further that

Certain pro-
visions
former Acts
and Order to
apply.

A.D. 1915. section 321 (Repayment of money borrowed other than that now due by instalments of sinking fund in sixty years) of the Act of 1882 in its application to all moneys to be borrowed or raised under the powers of this Order shall be read and have effect as if the same contained only the non-cumulative provisions therein for repayment.

Application
of sections
of Order of
1907.

27. The sections hereinafter specified of the Order of 1907 shall so far as not varied by or inconsistent with the provisions of this Order extend and apply mutatis mutandis to the moneys authorised to be borrowed by the Corporation under this Order and to the Corporation and all other persons in respect thereof as fully and effectually as if those sections had been re-enacted in this Order with reference thereto (that is to say):—

Section 96 (Bonds by the Corporation);

Section 97 (Bonds may be transferred by indorsement);

Section 98 (Bonds to be recorded and transfers to be registered).

Assess-
ments.

28. Notwithstanding anything in the Dundee Corporation Acts 1871 to 1914 and particularly in Part V. (Estimates and Assessments) of the Act of 1882 contained the several assessments and rates leviable by the Corporation under and in pursuance of this Order shall be subject in all respects to the provisions of subsections (3) (4) (5) (6) and (7) of section 99 (Assessments) and of subsection (4) of section 103 (Saving for Dundee Harbour Trustees) of the Order of 1907.

PART VI.

MISCELLANEOUS.

As to fines
penalties and
forfeitures
and recovery
thereof.

29. Subject to the provisions of this Order the provisions of the Act of 1882 and the Acts incorporated therewith with reference to the recovery of fines penalties and forfeitures imposed or authorised to be imposed by that Act shall be and are hereby made applicable to the recovery of all fines penalties and forfeitures imposed or authorised to be imposed by or under the provisions of this Order.

Saving
saving pro-
visions in
Act of 1882.

30. Nothing contained in this Order shall alter prejudice or affect the saving provisions contained in sections 330 331 and 333 of the Act of 1882 but such saving provisions shall apply to this Order and for the purposes thereof.

31. Nothing contained in this Order or in any Act incorporated in whole or in part with this Order shall repeal alter diminish or affect any rights interests titles dues powers jurisdictions immunities privileges exemptions and authorities of the trustees of the harbour of Dundee secured under any statutes of and relating to the trustees and their harbour undertaking or under any of the Acts public local or private relating to the Corporation.

A.D. 1915.
Saving
clause for
Dundee Har-
bour.

32. The costs charges and expenses of and incident to the preparing and applying for and the issue of this Order and the confirmation thereof by Parliament or otherwise in relation thereto shall be paid by the Corporation Any money borrowed for paying any such costs charges and expenses shall be repaid within five years from the commencement of this Order.

Costs of
Order.

The SCHEDULE referred to in Section 33 of the Act of 1913 as made applicable to the foregoing Order.

PROPERTIES WHEREOF PORTIONS ONLY ARE REQUIRED TO
BE TAKEN.

Parish.	Numbers on deposited Plan.	Description of Property.
Parish of Dundee -	30 30 30	Building used as warehouse stores and office.
Parish of Dundee -	32	Open court.
Parish of Dundee -	33	Open court with walls.
Parish of Dundee -	34	Open space and drip with gangway.
Parish of Dundee -	35	Watercloset.
Parish of Dundee -	57	Part of open court known as Doig's Court.
Parish of Dundee -	68	Building occupied as shops cellars work-shops dwelling-houses and appurtenances telephone pole and with sewer under.
Parish of Dundee -	69	Building occupied as shops cellars and lodging-house with covered gangway.
Parish of Dundee -	71	Common stair.
Parish of Dundee -	76	Open court with sewer.

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